

Chapter – 10: The Constitution of India – An Introduction

I would like to point out that if we are able to act according to the Constitution which has been adopted..., I am sure we shall be able very soon to make our country great. This is a goal which is within our power to reach, but its realization would require hard physical and mental labour and above all great moral regeneration. We have prepared a democratic Constitution. But the successful working of democratic institutions requires in those who have to work with them willingness to respect the viewpoint of others, capacity for compromise and accommodation. – Dr. Rajendra Prasad, first President of India



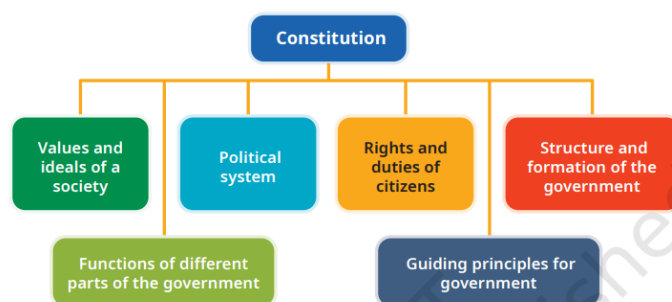
- Another chilly January morning – Delhi – Republic Day
- Ma's voice – echoed through house – wake up or miss the parade
- Papa – switched on Door darshan – called out – Kumar, Niharika – come quickly – parade started
- Children – very excited – rushing in front of T.V. – don't want to miss Parade
- This day – deep significance – marks – coming into effect – Indian Constitution – 26th January 1950
- The book – adj. picture – our Constitution – preserved – **helium**-filled glass chamber – Parliament
- Constitution of India – document – many imp. officials – pledge to uphold
- President – takes oath – preserve, protect, defend – Prime minister, council of ministers, judges – follow its provisions

What is a Constitution?

- Simple answer – document – spells out – basic principles, laws –
 - Framework – 3 organs – legislature, executive, judiciary – their roles, responsibilities
 - Checks, balance – 3 organs of govt. – ensure fairness, responsibility, accountability
 - Rights, duties – citizens
 - Outline – long-term goals – aspirations for nation

Why do we need a constitution?

- Our constitution – rulebook for the country
- Basic rules, principles – constitution – decide – kind of govt. – how to form – how to func.
- Many principles – previous chapter – legislature, executive, judiciary – how are they formed, how they work
- Constitution describes – how to make laws – implement them – who elects – how judiciary is made – rights, duties every citizen have
- Many constitution – state – values, ideas – country – committed to – equality, justice for all – fraternity – freedom
- These ideas, values – basis – laws, principles – constitution



Writing the Constitution of India

- India – struggling – independence – British rule – necessary – plan – how to govern ourselves
- Many imp. ques. – India – large, culturally diverse, complex country

- Answer these ques. – constituent assembly – formed in 1946 – initially – 389 members – reduced to 299 – after partition – 15 women – represent – India’s diverse regions, professions, social grps.

How was our Constitution developed?

- Indian Constitution – developed, written – constituent assembly – almost 3 yrs. period
- Formed on 9th December 1946 – members elected by – legislative assemblies
- Dr. Rajendra Prasad – chairman – constituent assembly
- Work completed – 26th November 1949 – resulting document – adopted as Constitution of India – 26th January 1950 – celebrated as Republic Day
- Initial text – constitution – prepared by – Drafting Committee – chaired by – Dr. B. R. Ambedkar – social reformer – 1st law and justice minster – independent India

What Shaped and Influenced the Indian Constitution?

- Constitution – developed by constituent assembly – had many influences
- Experience, ideas, ideals – Indian Freedom movement – significant influence
- India’s civilizational heritage, culture – key role
- Useful learnings – constitutions – other countries – also considered

Influence of Indian Freedom Movement

- Key ideals, values – Indian freedom struggle – enshrined – constitution
- Constitution – cornerstone – independent India
- No. of leaders – Indian freedom struggle – members – constituent assembly – carried – experience, ideas – freedom struggle to constitution
- Some ideas, values – equality, justice, freedom, fraternity, preservation – India’s cultural heritage
- Constitution – used as – means of achieving – values, ideals
- Experience, learnings – freedom struggle – provided answers – how, what ques. –
 - How to make sure every adult can vote?
 - How to ensure powers of 3 organs are separate?
 - How to guarantee fundamental rights are respected?
 - What should be the process to amend constitution?
 - What should be the relation b/w central, state govt.

India’s civilizational heritage and history

- Idea – India – 1 country – embedded in constitution
- Fundamental principles – embedded in culture – people can have diff. pt. of views, respect of women, *vasudhaiva kutumbakam* (world is one family) and *sarve bhavantu sukhinah* (everyone should be healthy)
- All these principles – place – constitution – BUT – expressed differently
- Therefore – quite natural – constitution makers – add these ideas – into constitution

Learnings from across the world

- Indian tradition – *a no bhadrah kratavo yantu vishwatah* – let the noble thoughts come to me from every side
- Constitution makers – studied – France, USA, UK, Ireland, Australia – explore their constitutions
- Liberty, equality, fraternity – France – directive principles of state policy – Ireland – independent judiciary – America

Key Features of Constitution of India

- Revisit – some concepts – grade 6 –
 - 3 organs of govt. – legislature, executive, judiciary – separation of power – essential
 - Legislature – make laws
 - Law – implemented – executive – headed by Prime Minister
 - Judiciary – ensure – law according to Constitution – also decide – punishment for breaking laws
 - 3-tier sys. of govt. – central, state, local
 - Some responsibility – central govt. – others – state govt.
- Constitution defines – roles, func., responsibilities, accountability – each organ
- Electoral sys. – ensure – every eligible citizen – vote
- Other core aspects – Fundamental Duties, Fundamental Rights, Directive Principles of State Policy
- Directive Principles of State Policy (DPSP) – essence – social, economic vision – makers of constitution – had for India
- People – wrote constitution – created this sys. on purpose
- They wanted – some rights – demanded immediately – Fundamental Rights – some bigger goals – Directive Principles – take time – achieve – country progressed
- Fundamental Rights –
 - Right to Equality – Article 14 – Equality before law
 - Right to Freedom – Article 21 – Protection of life and personal liberty
 - Right against Exploitation
 - Article 21-A – Right to Education
- Fundamental Duties –
 - Abide by constitution – respect – ideals, institutions, National Flag, National Anthem
 - Defend country – render national service – when called to do so
 - Value, preserve – rich heritage – composite culture
 - Protect, improve – natural env. – forests, lakes, rivers, wild life – have compassion – living creatures
 - Strive towards excellence – all spheres – individual, collective act. – nation – rise to higher levels – endeavor, achievement
 - Parent, guardian – provide opportunity – their child – education – between age 6 and 14
- DPSP –
 - Article 41 – Welfare Govt.
 - Article 44 – Uniform Civil Code
 - Article 38 – Social, Political, Economic Justice
 - Article 48-A – Env. and Wildlife Protection
 - Article 49 – Protection of monuments, places, obj. – national importance
 - Article 47 – Nutrition, std. of living, public health

The Constitution is a Living Document

- Constitution makers – realized – need to amend laws – might emerge in future
- Part 4-A – Fundamental Duties – added in 1976
- Must remember – any changes (amendments) – debated in Parliament
- Some – debated in Legislative Assemblies as well
- Many times – opinions taken – general public
- Some changes – initiated by – popular movements

- Govt. – create opportunity – people – provide feedback – proposed laws, changes

Understanding the Preamble: The Guiding Values of Constitution of India

- Constitution's core values – guiding principles – policies, decision-making – govt. – expected to follow
- Citizens – also expected – practice them – best of their ability
- Guiding values – present across constitution – BUT – their essence – written in Preamble
- Preamble of the Indian Constitution –
 - **We, the people of India**, having solemnly resolved to constitute India into a **Sovereign Democratic Republic** and to secure to all its citizens:
 - Justice**, social, economic and political;
 - Liberty** of thought, expression, belief, faith and worship;
 - Equality** of status and opportunity;and to promote among them all
 - Fraternity** assuring the dignity of the individual and the unity of the nation;**In our Constituent Assembly** this twenty-sixth day of November, 1949, do **hereby adopt, enact and give to ourselves this Constitution**
- **We, the people of India** – Constitution – drawn, enacted by people – through representative – and NOT by king or any outside powers
- **Sovereign** – people – supreme right – make decisions – internal, external matters – NO external power – right to dictate – govt. of India
- **Democratic** – form of govt. – people enjoy – equal political rights, elect rulers, hold them accountable – govt. run – according to basic rules
- **Republic** – head of state – elected person – NOT – hereditary position
- **Justice** – no discrimination – based on – caste, religion, gender – no social inequalities – govt. – work – welfare of all – especially – less advantaged grp.
- **Liberty** – no unreasonable restrictions – what to think, how to express thoughts, way to follow their thoughts
- **Equality** – all equal – before law – social inequalities – end – govt. ensure – equal opportunities – all
- **Fraternity** – all of us – behave – members – same family – do not treat – fellow citizen – inferior
- **Socialist** – wealth – generated socially – shared by society – govt. – regulate ownership – land, industry – reduce socio-economic inequalities
- **Secular** – citizens – complete freedom – follow any religion – BUT – no official religion – govt. – treat all religious beliefs, practices – equal respect